

Calendar Line 7

Case Name: *Shabana Pirani v. Comcast Cable Communications, LLC*

Case No.: 25CV477283

I. BACKGROUND

Plaintiff Shabani Pirani (“Plaintiff”) brings this complaint for exemplary damages against Defendant Comcast Cable Communications, LLC (“Defendant” or “Comcast”) (erroneously sued as “Xfinity sub of Comcast Cable Communications, LLC” and “Xfinity Internet subsidiary of Comcast Cable Communications, LLC”).

On September 15, 2025, Plaintiff alleges she contacted Defendant’s customer service department to resolve a billing discrepancy. (Complaint at p. 6.) Plaintiff alleges she “tendered full payment of the amount due, together with an advance payment for the subsequent month.” (*Ibid.*) Plaintiff received confirmation that the account was current. (*Ibid.*) However, Plaintiff alleges Defendant “falsified and overstated the balance due and wrongfully disconnected Plaintiff’s internet service.” (*Ibid.*)

Plaintiff visited a Xfinity store location on September 25, 2025. (Complaint at p. 6.) The store manager “deleted several transactions that had been erroneously reflected on Plaintiff’s account.” (*Ibid.*) However, “by the following morning, additional unauthorized transactions appeared on Plaintiff’s bill.” (*Ibid.*) Plaintiff alleges Defendant refused to correct the falsified balance, credit the deleted items, and debited funds from the wrong bank account without authorization. (*Ibid.*)

Plaintiff visited a different Xfinity store location on September 26, 2025. (Complaint at p. 7.) The store manager there “refused to acknowledge prior payments, declined to accept the corrections suggested by the billing department,” and “continued to authorize and process unauthorized debits from the same bank account.” (*Ibid.*) Plaintiff alleges Defendant made false and derogatory statements to other employees and customers insinuating that Plaintiff was dishonest and was attempting to evade payment. (*Ibid.*)

Plaintiff filed suit on October 14, 2025. Plaintiff filed a First Amended Complaint (“FAC”) on October 27, 2025. Therein, Plaintiff alleges two intentional torts seemingly for unfair business practices and defamation and seeks exemplary damages.

Defendant now moves to compel arbitration of Plaintiff's claims pursuant to the arbitration provision contained in the Xfinity Residential Services Agreement ("the Agreement"). Having considered the Agreement and the circumstances of its execution, the Court will grant the motion and stay the action. Defendant's request for judicial notice of the California Secretary of State Statement of Information for Comcast Cable Communications, LLC and Xfinity Bill Services LLC is granted pursuant to Evidence Code section 452, subdivision (c). (Request for Judicial Notice, Ex. A & B.) Likewise, Defendant's request for judicial notice of the Register of Actions obtained from the Santa Clara County Superior Court website is also granted pursuant to Evidence Code section 452, subdivision (d). (*Id.*, Ex. C.)

II. LEGAL STANDARD

Defendant maintains the Federal Arbitration Act ("FAA") governs the Agreement. The Agreement provides, "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act." (Declaration of Colin M. Padgett ["Padgett Decl."], Ex. 1 at ¶ 13(f).) Additionally, the Agreement concerns interstate telecommunication services. The FAA's term involving commerce is interpreted broadly. (See *Nieto v. Fresno Beverage Co.* (2019) 33 Cal.App.5th 274, 279 [noting that the language reflects "that Congress intended the law's coverage to extend to the full reach of its commerce clause power"; see also *Citizens Bank v. Alqfabco, Inc.* (2003) 538 U.S. 52, 56-57.) Therefore, the FAA applies.

Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

III. ANALYSIS

A. Default Has Not Been Entered and Comcast is the Correct Defendant

Plaintiff erroneously claims that default has been entered against Defendant. The clerk has rejected each of Plaintiff's requests for entry of default. (Request for Judicial Notice, Ex.

C.)¹ “However, it is now well established by the case law that where a pleading is belatedly filed, but at a time when default has not yet been taken, the plaintiff, has in effect, granted the defendant additional time within which to plead and he is not strictly in default.” (*Goddard v. Pollack* (1974) 37 Cal.App.3d 137, 141.) The untimely pleading is not void, and “[t]he proper procedure is for the plaintiff to move to strike the defendant’s untimely pleading and, if the court grants such relief, thereafter proceed to obtain the entry of the defendant’s default.” Although the instant motion and declaration in support of an automatic extension are untimely, the register of actions does not reflect that Plaintiff has moved to strike these filings. (Request for Judicial Notice, Ex. C.) Moreover, Plaintiff does not move to strike these filings by way of its opposition. As noted, Plaintiff’s attempts at entering default have been unsuccessful. Thus, Defendant has properly appeared, and the Court may consider the instant motion.

Furthermore, Comcast is the correct defendant in this action. Xfinity is the brand and trade name through which Comcast provides services. (Padgett Decl. at ¶¶ 7, 9, Ex. 1 at ¶ 1.) The arbitration provision also makes clear that “we” and “us” refers to Comcast who is the party that providing the service. (*Id.* at ¶ 13, Ex. 1 at ¶ 13(a).) Accordingly, Comcast is the correct defendant and may move to compel arbitration.

B. There is a Valid Agreement to Arbitrate

“[T]he moving party bears the burden of producing ‘prima facie evidence of an agreement to arbitrate the controversy.’ The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166, internal citations and quotations omitted.) Here, Defendant has attached a copy of the Agreement to its motion. (Padgett Decl., Ex. 1.)

The Agreement provides, “[y]ou accept this Agreement and agree to its terms by activating the Services, using the Services, continuing to use the Services after we provide notice of a change to this Agreement, or otherwise indicating your acceptance of the Services.” (Padgett Decl., Ex. 1 at p. 1.) In the Declaration of Colin M. Padgett, the Senior Director of

¹ Plaintiff has also served the incorrect registered agent for service of process. (Request for Judicial Notice, Ex. A & B.)

Customer Service Strategy and Operations for Defendant, Mr. Padgett attests that Plaintiff opened an account on October 3, 2024. (Padgett Decl. at ¶ 7.) He further attests that “[i]n 2024, it was Comcast’s routine and regular business practice to provide all Xfinity customers with a link to the Residential Services Agreement at the time the customer’s order is confirmed.” (*Id.* at ¶ 9.)

Plaintiff used the Xfinity internet services from October 3, 2024 through October 13, 2025. (Padgett Decl. at ¶ 11.) Plaintiff argues that she did not sign any agreement to arbitrate and that Defendant bears the burden of producing a valid agreement to arbitrate. (Declaration of Shabana Pirani at ¶¶ 10, 11.) As noted above, Defendant has met this burden. While Plaintiff contends she did not sign an agreement to arbitrate, she does not however, dispute using the services during this time period. “[I]t is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an *agreement* to arbitrate which matters.” (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 361, emphasis in original.) Here, Plaintiff’s assent is manifested through the continued use Defendant’s services. “A voluntary acceptance of the benefit of a transaction is equivalent to a consent to all the obligations arising from it, so far as the facts are known, or ought to be known, to the person accepting.” (Civ. Code § 1589; accord *Vita Planning & Landscape Architecture, Inc. v. HKS Architects, Inc.* (2015) 240 Cal.App.4th 763, 773.) Accordingly, there is a valid agreement to arbitrate.

C. The Scope of the Agreement Covers Plaintiff’s Claims

Paragraph 13 of the Agreement provides in relevant part: “This Arbitration Provision shall be interpreted broadly. ‘**Dispute**’ means any and all claims or controversies arising out of or related to any aspect of our relationship, including but not limited to, any and all (i) claims for relief and theories of liability, whether based in contract, tort, fraud, negligence, statute, regulation, ordinance, or otherwise” (Padgett Decl., Ex. 1 at ¶ 13(a).) Plaintiff’s claims concern a billing dispute that arises out of her relationship with Defendant and concerns the services offered under the Agreement. Plaintiff’s claims for intentional torts and exemplary damages fall within the scope of the Agreement. Additionally, Plaintiff does not claim that she opted out of arbitration. The Agreement gave her 30 days from her first service activation to

opt out of the Agreement. (Padgett Decl., Ex. 1 at ¶ 13(c).) There is no record that Plaintiff did so. (*Id.* at ¶ 16.)

Since there is a valid agreement to arbitrate and the scope of the Agreement covers Plaintiff's claims, the Court GRANTS the motion to compel arbitration. This action is STAYED in its entirety pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

IV. CONCLUSION

The motion to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration. This matter is SET for an Arbitration Review Hearing on February 11, 2027, at 10am in Department 1.

The Court will prepare the order.

- oo0oo -